

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 09/01/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-00114
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. PASCAL ROYET
FOR ENTERING JUDGMENT PURSUANT TO DEF'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT
FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Background

Plaintiff filed, on 5/19/36, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The papers were served by mail to the address where Plaintiff had served the Defendant with process through substitute service.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$6,087.72, less any credits for payments received, and plus costs.

Defendant made total payments in the amount of \$0; and costs are \$394.73, per the Declaration.

Thus, the judgment amount should be \$6,482.45.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,482.45.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-04586
CASE NAME: WELLS FARGO BANK, N.A. VS. RAFAEL VALLEJO
TO VACATE DISMISSAL UNDER C.C.P. 664.6 & ENTER JUDGMENT PURSUANT TO STIPULATION
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$11,041.15, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$8,003.15.

Costs are \$445.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,483.

Plaintiff to file order on Motion, as well as submit Judgment.

**3. 9:00 AM CASE NUMBER: L24-11721
CASE NAME: CRESER CAPITAL FUND VS. MICHELLE FRANCIS
MOTION TO BE RELIEVED AS COUNSEL FILED BY JULIA A. CLAYTON (DEF'S COUNSEL) ON
04/01/2026**

FILED BY:

TENTATIVE RULING:

Counsel for Defendant filed a Motion to be relieved. Counsel has indicated that the reasons are confidential.

Disposition

The court will conduct an in camera hearing with counsel on 9/1/26, at 9am.

**4. 9:00 AM CASE NUMBER: L25-00296
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. DEBORAH WILLIAMS
FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND
RELEASE AGREEMENT**

FILED BY: JEFFERSON CAPITAL SYSTEMS LLC

TENTATIVE RULING:

Background

Plaintiff filed, on 5/19/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The papers were served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint and Summons in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$3,749.98, less any credits for payments received.

Defendant made total payments in the amount of \$79; costs, per Declaration, are 340.96; thus, the

judgment amount should be \$4,011.94.

The Stipulation was filed on 6/23/26.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,011.94.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L25-03749
CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES
STRIKE DEFENDANT'S LATE ANSWER
FILED BY: BURNETT, BRIAN

TENTATIVE RULING:

Plaintiff has filed a Motion to Strike the Answer of Defendant because it was late.

Defendant, in their Response, contends that the late filing occurred only after a good faith attempt to file within the appropriate time period was rejected for a minor error.

Plaintiff filed a Reply in which he essentially argues that a late filing is a late filing.

Background

This court granted leave to Defendant, on 4/14/26, to file an Answer to the Complaint within 10 days, after setting aside entry of default and default judgment.

Defendant formally filed their Answer on 5/7/26, the filing of which this court takes judicial notice.

In the Response, counsel for Defendant declares that he attempted to file the Answer on 4/21/26, but it was rejected because of form errors. Specifically, the exhibit reflects that the Court Clerk rejected the Answer on 4/21/26 because the Answer apparently did not indicate that it was an answer to an amended complaint; and because counsel mistakenly indicated that the Defendant was self-represented.

This court also notes that Defendant provided a proposed Answer in their Motion to Set Aside, filed on 1/28/26.

Analysis

Section 473(a)(1) of the CCP permits a court to extend the term for a party to file an Answer, in the furtherance of justice.

The facts of the instant matter fall squarely within the spirit of this statute. Defendant clearly attempted in good faith to follow the court's instructions. The reasons Defendant was unsuccessful

were due to minor, clerical errors. What's more, Defendant had already included a proposed answer with their earlier motion to set aside the default judgment, so this is not a case where Plaintiff is caught by surprise.

The furtherance of justice compels this court to allow the filing of the late Answer in this matter.

Disposition

Plaintiff's Motion is Denied.

Defendant to file Order.

**6. 9:00 AM CASE NUMBER: L25-03749
CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES
FOR ORDER TO SHOW CAUSE AND SANCTIONS FOR VIOLATION OF COURT ORDER
FILED BY: BURNETT, BRIAN
*TENTATIVE RULING:***

Plaintiff has a filed a motion requesting this court to issue an order show cause for Plaintiff's apparent violation of a 4/14/26 Order in which this court directed Defendant to file their Answer within 10 days.

The Plaintiff requests sanctions under various statutes, such as: CCP 128 (Contempt); CCP 177.5 (Court's general power to issue sanctions for order violations); CCp 575.2 (Sanctions for violations of local rules); and, CRC 2.30 (general sanctions authority for rule violations).

Background and Analysis

The court, in its analysis on Plaintiff's separate motion in this matter stemming from the same issue, found that though Defendant may have filed their Answer nearly 2 weeks late, Defendant made a good faith effort to comply with the court's order and, had it not been for 2 minor clerical errors, would have successfully filed their Answer before the proper deadline.

This court does not find that Defendant engaged in any conduct that would warrant sanctions.

Disposition

Plaintiff's Motion is denied.

Defendant to file Order.

7. 9:00 AM CASE NUMBER: L25-05850

CASE NAME: JPMORGAN CHASE BANK N.A. VS. ELIZABETH FIELD

VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,495.61, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$1,895.61.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,600.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L25-06238

CASE NAME: BANK OF AMERICA N.A. VS. KARLA INTERIANO

FOR JUDGMENT ON THE PLEADINGS

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Memo of Points and Authorities, and one of costs. The Motion and Memos were timely served by mail on the address for Defendant provided in the Answer.

Plaintiff also filed a declaration reflecting their attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits the allegations of the Complaint and offers no defense.

The Complaint alleges breach of contract in that Defendant obtained a credit account from Plaintiff, agreed to its terms by borrowing money on this account, then failed to make payments on the account when they were due, owing a balance of \$7,619.46.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer filed 8/19/2025, does not mark the box indicating a denial, and instead, writes that admits that the statements of Plaintiff are true, but that she simply cannot afford the payments. The Answer reflects nothing else.

The memo on costs reflects costs of \$358.61.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. CCP 431.20(a).

When a collections case is not verified, "[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint." CP 431.30(d). Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she "has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint." CCP 431.30(e).

A court can grant a motion for judgment on the pleadings with leave to amend. CCP 438(h)(1). The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, the Defendant admits all of the allegations in the Complaint and makes no request for leave to amend the Answer.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is Granted. Judgment is awarded in the amount of \$7,619.46.

Costs are awarded in the amount of \$358.61.

Plaintiff will file the Order as well the Judgment, and serve notice of both on the Defendant.

**9. 9:00 AM CASE NUMBER: L25-08228
CASE NAME: WELLS FARGO BANK, N.A. VS. JOSE SUCHITE**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Wells Fargo v. Bryan Manuel

Background

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via a mail address provided by the Defendant in the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence

but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the declaration of Tanner Smith, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Smith declared that he was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence. However, only the statements about Mr. Smith's knowledge of the business practices of Plaintiff are admissible.

Any statements reflecting Mr. Smith's knowledge of any account details that are not also apparent in the accompanying records are not admissible. The example of this would be Mr. Smith's statement that a copy of the Cardholder Agreement was, in fact, sent to Defendant. This fact is not reflected in any of the records. And it is unclear how Mr. Smith obtained this knowledge without observing some detail in a record that was not provided, the testimony of which would be hearsay.

There is nothing in the Declaration suggesting that mailing a Cardholder Agreement would have occurred because it is the custom and practice of Wells Fargo to do so.

While it is apparent Defendant incurred charges on a credit card, made some payments against these charges, and never objected to the statement of charges, it is unclear that he ever agreed to

anything.

Thus, this court finds that Plaintiff has not met its burden to prove the existence of a contract.

Disposition

Plaintiff's Motion is denied.

Court to issue Order.

**10. 9:00 AM CASE NUMBER: L25-14731
CASE NAME: SANDIPAN MUKHERJEE VS. FIND MY PROFESSION, INC.
FOR ORDER PERMITTING SERVICE BY ELECTRONIC MAIL AND MAIL
FILED BY: MUKHERJEE, SANDIPAN**

TENTATIVE RULING:

Plaintiff has filed a Motion and Declaration for alternative service of summons and complaint. Plaintiff requests permission to serve Defendant via email, followed by a mailing.

Plaintiff's Motion and Declaration reflect he has made several unsuccessful attempts to personally serve the agent of the Defendant corporation at an address published by the Colorado Secretary of State. Plaintiff also declares that this agent has communicated with Plaintiff using several different email addresses.

This court finds that Plaintiff has exercised reasonable diligence to effect service, and that electronic service coupled with mail service is a method that is reasonably calculated to give actual notice to the Defendant.

Disposition

Plaintiff's Motion is granted.

**11. 9:00 AM CASE NUMBER: L26-01239
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KEVIN RICHMOND
TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,386.62, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,386.62.

Plaintiff to file order on Motion, as well as submit Judgment.

12. 9:00 AM CASE NUMBER: L26-03854
CASE NAME: VELOCITY INVESTMENTS LLC VS. DONPREYEL MARTIN
MOTION FOR STAY OF PROCEEDINGS PENDING ARBRITRATION
FILED BY:
TENTATIVE RULING:

Defendant has filed a Motion to stay proceedings pending arbitration. However, there is no evidence that Defendant provided notice to the Plaintiff.

Disposition

This Motion will be continued to 12/15/26, 9am.

Defendant to provide notice of the Motion and hearing date to Plaintiff.

13. 9:00 AM CASE NUMBER: MSL21-04880
CASE NAME: DISCOVER BANK VS MRAZ
FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND

RELEASE AGREEMENT
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Background

Plaintiff filed, on 5/19/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The papers were served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint and Summons in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,723.57, less any credits for payments received, plus costs.

Defendant made total payments in the amount of \$5,760; costs, per Declaration, are \$360; thus, the judgment amount should be \$2,323.57.

The Stipulation was filed on 6/23/26.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,323.57.

Plaintiff to file order on Motion, as well as submit Judgment.

14. 9:00 AM CASE NUMBER: N26-0757
CASE NAME: QUALITY LOAN SERVICE CORP. VS. ALL CLAIMANTS TO SURPLUS FUNDS
PETITION FOR RELEASE OF SURPLUS FUNDS
FILED BY: QUALITY LOAN SERVICE CORP.
TENTATIVE RULING:

After a review of the Petition, this court finds that Petitioner has notified all relevant parties under Section 2924j of the Civil Code, of the existence of surplus funds, and of the Petition to deposit the funds, as well as of the date of the hearing.

Moreover, this court finds, under Section 2924j(b) and (c) of the Civil Code, that Petitioner has exercised due diligence to determine the priority of written claims to the trustee's sale surplus proceeds, and has determined that there is a conflict between potential claimants.

Disposition

Petitioner's request to deposit the surplus funds with the Clerk of the Superior Court is granted.

Before doing this, however, Petitioner must provide notice as instructed under Subdivision (d) of CC 2924j.

15. 9:00 AM CASE NUMBER: N26-0972

CASE NAME: MOHAMMED NAAR VS. EMPLOYMENT DEVELOPMENT DEPARTMENT 255-EDD-PFL-DEPARTMENT

PETITION FOR BOARD DECISION

FILED BY: NAAR, MOHAMMED

TENTATIVE RULING:

Petitioner has filed what appears to be Petition for Writ of Mandate against the Appeals Board.

However, there is no indication that Petitioner has provided any notice of this Petition or hearing to the Respondent.

Disposition

This Hearing will be continued to 10/22/26, at 10 a.m.

Petitioner is to serve Respondent with copy of the filed Petition, as well as notify Respondent of the 10/22/26 hearing.